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BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

(Criminal Jurisdiction)

Date : 12.10.2026

PRESENT

The Hon`ble Mr.Justice K.MURALI SHANKAR

CRL OP(MD). No.23258 of 2026

1.Naveen

2.Praveen

... Petitioners/
Accused 2&3

Vs

The State by
The Inspector of Police,
Karaikudi South Police Station,
Sivagangai District.
(Crime No.124 of 2026).

... Respondent/
Complainant

For Petitioners: Mr.UM.Berdin Vinodh,
Advocate

For Respondent : Mr.T.Lenin Kumar,
Additional Public Prosecutor

PETITION FOR BAIL Under Section 483 of B.N.S.S.

PRAYER : For Bail in connection with the case in P.R.C.No.53 of 2026 before the Judicial Magistrate, Karaikudi, Sivagangai District, in Crime No.124 of 2026 on the file of the Respondent Police.

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ORDER : The Court made the following order :-

The petitioners / accused 2 and 3, who are facing a case for the offences punishable under Sections 49, 191(2), 191(3), 126(2), 296(b), 115(2), 118(1), 109 and 351(3) BNS, in P.R.C.No.53 of 2026, on the file of the Judicial Magistrate, Karaikudi, Sivagangai District, in Crime No.124 of 2026, on the file of the respondent police, seek bail.

2. The case of the prosecution is that due to previous enmity, on 08.07.2026, the petitioners along with other accused abused the defacto complainant in filthy language and attacked him with empty beer bottle. Hence, the complaint.

3. No doubt, the petitioners' earlier petition for bail in Crl.O.P(MD)No.17720 of 2026 came to be dismissed by this Court vide order dated 18.08.2026.

4. The learned counsel appearing for the petitioners would submit that the petitioners are innocent and they have not committed any offence as

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alleged by the prosecution. He would further submit that the fifth accused was granted anticipatory bail by the Sessions Court in Crl.M.P.No.1724 of 2026 on 20.07.2026 and two other accused were released on bail by the Sessions Court in Crl.M.P.Nos.1830 and 1665 of 2026 on 29.07.2026 and 15.07.2026, that subsequent to the dismissal of the earlier bail petition, charge sheet came to be filed and the first accused was granted bail by the Principal Sessions Court in Crl.M.P.No.2290 of 2026 on 03.09.2026 and that the petitioner is in judicial custody from 10.07.2026.

5. The learned Additional Public Prosecutor appearing for the respondent police would submit that there are totally eight accused in this case and the petitioners are arrayed accused 2 and 3 and that the first petitioner is having 12 previous cases and the second petitioner is having 19 previous cases and they are history-sheeted persons.

6. Considering the above facts and circumstances

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and taking note of the fact that the petitioners are in judicial custody from 10.07.2026 and also the facts that after completing the investigation, charge sheet came to be filed and that the first accused was granted bail by the Principal Sessions Court, this Court is inclined to grant bail to the petitioners subject to the following conditions:

7. Accordingly, the petitioners are ordered to be released on bail on their executing a bond for a sum of **Rs.25,000/- (Rupees Twenty Five Thousand only)** each with two sureties each for a like sum to the satisfaction of the learned Judicial Magistrate, Karaikudi, Sivagangai District, and on further conditions that:

(i)the sureties shall affix their photographs and left thumb impression in the surety bond and the Magistrate / concerned court may obtain a copy of their Aadhar card or Bank Pass Book to ensure their identity;

(ii)the petitioners shall stay at Viluppuram and report before the Inspector of Police, Viluppuram Town Police Station, Viluppuram, daily at 10.30 a.m.,

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for a period of thirty (30) days and thereafter, before the committal Court at 10.30 a.m., for a period of fifteen (15) days;

(iii)the petitioners shall not tamper with the evidence or witness either during investigation or trial;

(iv)the petitioners shall not abscond either during investigation or trial;

(v)On breach of any of the aforesaid conditions, the learned Magistrate / Trial Court is entitled to take appropriate action against the petitioners in accordance with law as if the conditions have been imposed and the petitioners are released on bail by the learned Magistrate / Trial Court himself as laid down by the Hon'ble Supreme Court in ***P.K.Shaji vs. State of Kerala [(2005)AIR SCW 5560];***

(vi)If the accused thereafter abscond, a fresh FIR can be registered under Section 269 BNS, 2023.

(K M S J)
12.10.2026

CSM

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K.MURALI SHANKAR,J

CSM

TO
1. The Judicial Magistrate,
   Karaikudi, Sivagangai District.
2. Do through
   The Chief Judicial Magistrate,
   Sivagangai.
3. The Officer-in-Charge,
   Sub Jail, Sivagangai,
   Sivagangai District.
4. The Inspector of Police,
   Karaikudi South Police Station,
   Sivagangai District.
5. The Inspector of Police,
   Viluppuram Town Police Station,
   Viluppuram.
6. The Additional Public Prosecutor,
   Madurai Bench of Madras High Court,
   Madurai.

ORDER
IN
CRL OP(MD) No.23258 of 2026

Date : 12.10.2026